

SENATE BILL NO. 1633

103RD GENERAL ASSEMBLY

INTRODUCED BY SENATOR WEBBER.

5577S.011

KRISTINA MARTIN, Secretary

AN ACT

To repeal sections 213.010, 213.030, 213.040, 213.045, 213.050, 213.055, 213.065, 213.070, 213.075, 213.101, 213.111, and 285.575, RSMo, and to enact in lieu thereof eleven new sections relating to unlawful discriminatory practices.

Be it enacted by the General Assembly of the State of Missouri, as follows:

Section A. Sections 213.010, 213.030, 213.040, 213.045,
2 213.050, 213.055, 213.065, 213.070, 213.075, 213.101, 213.111,
3 and 285.575, RSMo, are repealed and eleven new sections enacted
4 in lieu thereof, to be known as sections 213.010, 213.030,
5 213.040, 213.045, 213.050, 213.055, 213.065, 213.070, 213.075,
6 213.101, and 213.111, to read as follows:

213.010. As used in this chapter, the following terms
2 shall mean:

3 (1) "Age", an age of forty or more years but less than
4 seventy years, except that it shall not be an unlawful
5 employment practice for an employer to require the
6 compulsory retirement of any person who has attained the age
7 of sixty-five and who, for the two-year period immediately
8 before retirement, is employed in a bona fide executive or
9 high policy-making position, if such person is entitled to
10 an immediate nonforfeitable annual retirement benefit from a
11 pension, profit sharing, savings or deferred compensation
12 plan, or any combination of such plans, of the employer,

EXPLANATION-Matter enclosed in bold-faced brackets [thus] in this bill is not enacted and is intended to be omitted in the law.

13 which equals, in the aggregate, at least forty-four thousand
14 dollars;

15 (2) ["Because" or "because of", as it relates to the
16 adverse decision or action, the protected criterion was the
17 motivating factor;

18 (3)] "Commission", the Missouri commission on human
19 rights;

20 [(4)] (3) "Complainant", a person who has filed a
21 complaint with the commission alleging that another person
22 has engaged in a prohibited discriminatory practice;

23 [(5)] (4) "Disability", a physical or mental
24 impairment which substantially limits one or more of a
25 person's major life activities, being regarded as having
26 such an impairment, or a record of having such an
27 impairment, which with or without reasonable accommodation
28 does not interfere with performing the job, utilizing the
29 place of public accommodation, or occupying the dwelling in
30 question. For purposes of this chapter, the term
31 "disability" does not include current, illegal use of or
32 addiction to a controlled substance as such term is defined
33 by section 195.010; however, a person may be considered to
34 have a disability if that person:

35 (a) Has successfully completed a supervised drug
36 rehabilitation program and is no longer engaging in the
37 illegal use of, and is not currently addicted to, a
38 controlled substance or has otherwise been rehabilitated
39 successfully and is no longer engaging in such use and is
40 not currently addicted;

41 (b) Is participating in a supervised rehabilitation
42 program and is no longer engaging in illegal use of
43 controlled substances; or

44 (c) Is erroneously regarded as currently illegally
45 using, or being addicted to, a controlled substance;

46 [(6)] (5) "Discrimination", [conduct proscribed
47 herein, taken because of] **any unfair treatment on the basis**
48 **of** race, color, religion, national origin, ancestry, sex,
49 [or] **sexual orientation, gender identity, or** age, as it
50 relates to employment, disability, **veteran status**, or
51 familial status as it relates to housing. **Discrimination**
52 **includes any unfair treatment based on a person's presumed**
53 **or assumed race, color, religion, national origin, ancestry,**
54 **sex, sexual orientation, gender identity, age, as it relates**
55 **to employment, disability, veteran status, or familial**
56 **status as it relates to housing, regardless of whether the**
57 **presumption or assumption as to such characteristic is**
58 **correct;**

59 [(7)] (6) "Dwelling", any building, structure or
60 portion thereof which is occupied as, or designed or
61 intended for occupancy as, a residence by one or more
62 families, and any vacant land which is offered for sale or
63 lease for the construction or location thereon of any such
64 building, structure or portion thereof;

65 [(8)] (7) "Employer", [a person engaged in an industry
66 affecting commerce who has six or more employees for each
67 working day in each of twenty or more calendar weeks in the
68 current or preceding calendar year, and shall include]
69 **includes** the state, or any political or civil subdivision
70 thereof, or any person employing six or more persons within
71 the state, **and any person directly acting in the interest of**
72 **an employer**, but does not include corporations and
73 associations owned [or] **and** operated by religious or
74 sectarian [organizations. "Employer" shall not include:

75 (a) The United States;

(b) A corporation wholly owned by the government of the United States;

(c) An individual employed by an employer;

(d) An Indian tribe;

(e) Any department or agency of the District of Columbia subject by statute to procedures of the competitive service, as defined in 5 U.S.C. Section 2101; or

(f) A bona fide private membership club, other than a labor organization, that is exempt from taxation under 26 U.S.C. Section 501(c)] **groups;**

[(9)] (8) "Employment agency" includes any person or agency, public or private, regularly undertaking with or without compensation to procure employees for an employer or to procure for employees opportunities to work for an employer;

[(10)] (9) "Executive director", the executive director of the Missouri commission on human rights;

[(11)] (10) "Familial status", one or more individuals who have not attained the age of eighteen years being domiciled with:

(a) A parent or another person having legal custody of such individual; or

(b) The designee of such parent or other person having such custody, with the written permission of such parent or other person. The protections afforded against discrimination [because of] **on the basis of** familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the age of eighteen years;

(11) **"Gender identity", the gender-related identity, appearance, mannerisms, or other gender-related**

characteristics of an individual, with or without regard to the individual's assigned sex at birth;

(12) "Human rights fund", a fund established to receive civil penalties as required by federal regulations and as set forth by subdivision (2) of subsection 11 of section 213.075, and which will be disbursed to offset additional expenses related to compliance with the Department of Housing and Urban Development regulations;

(13) "Labor organization" includes any organization which exists for the purpose, in whole or in part, of collective bargaining or of dealing with employers concerning grievances, terms or conditions of employment, or for other mutual aid or protection in relation to employment;

(14) "Local commissions", any commission or agency established prior to August 13, 1986, by an ordinance or order adopted by the governing body of any city, constitutional charter city, town, village, or county;

(15) "Person" includes one or more individuals, corporations, partnerships, associations, organizations, labor organizations, legal representatives, mutual companies, joint stock companies, trusts, trustees, trustees in bankruptcy, receivers, fiduciaries, or other organized groups of persons;

(16) "Places of public accommodation", all places or businesses offering or holding out to the general public, goods, services, privileges, facilities, advantages or accommodations for the peace, comfort, health, welfare and safety of the general public or such public places providing food, shelter, recreation and amusement, including, but not limited to:

(a) Any inn, hotel, motel, or other establishment which provides lodging to transient guests, other than an

establishment located within a building which contains not more than five rooms for rent or hire and which is actually occupied by the proprietor of such establishment as **[his]** **the proprietor's** residence;

(b) Any restaurant, cafeteria, lunchroom, lunch counter, soda fountain, or other facility principally engaged in selling food for consumption on the premises, including, but not limited to, any such facility located on the premises of any retail establishment;

(c) Any gasoline station, including all facilities located on the premises of such gasoline station and made available to the patrons thereof;

(d) Any motion picture house, theater, concert hall, sports arena, stadium, or other place of exhibition or entertainment;

(e) Any public facility owned, operated, or managed by or on behalf of this state or any agency or subdivision thereof, or any public corporation; and any such facility supported in whole or in part by public funds;

(f) Any establishment which is physically located within the premises of any establishment otherwise covered by this section or within the premises of which is physically located any such covered establishment, and which holds itself out as serving patrons of such covered establishment;

(17) "Race", includes a perception that a person is of a particular racial group based upon:

(a) Shared physical traits associated with ancestral origin or ethnicity;

(b) Shared cultural attributes;

(c) Wearing of protective hairstyles including, but not limited to, hairstyles and coverings that are designed

to protect textured hair from damage so it may be worn in its natural state such as braids, wigs, locks, twists, and afros; and

(d) Similar physical characteristics such as skin color and facial features;

[(17)] (18) "Rent" includes to lease, to sublease, to let and otherwise to grant for consideration the right to occupy premises not owned by the occupant;

[(18)] (19) "Respondent", a person who is alleged to have engaged in a prohibited discriminatory practice in a complaint filed with the commission;

[(19) "The motivating factor", the employee's protected classification actually played a role in the adverse action or decision and had a determinative influence on the adverse decision or action;]

(20) "Sexual orientation", one's actual or perceived emotional or physical attraction to, or romantic or physical relationships with, members of the same gender, members of a different gender, or members of any gender; or the lack of any emotional or physical attraction to, or romantic or physical relationships with, anyone. The term "sexual orientation" includes a history of such attraction or relationship or a history of no such attraction or relationship;

[(20)] (21) "Unlawful discriminatory practice", any act that is unlawful under this chapter;

(22) "Veteran status", means an individual served in a branch of the military of the United States or in the Missouri National Guard and was discharged for any reason other than dishonorable discharge or bad conduct discharge.

213.030. 1. The powers and duties of the commission shall be:

3 (1) To seek to eliminate and prevent discrimination
4 [because] on the basis of race, color, religion, national
5 origin, ancestry, sex, **sexual orientation, gender identity,**
6 age, as it relates to employment, disability, **veteran**
7 **status,** or familial status as it relates to housing and to
8 take other actions against discrimination [because] on the
9 **basis** of race, color, religion, national origin, ancestry,
10 sex, **sexual orientation, gender identity,** age, disability,
11 **veteran status,** or familial status as provided by law; and
12 the commission is hereby given general jurisdiction and
13 power for such purposes;

14 (2) To implement the purposes of this chapter first by
15 conference, conciliation and persuasion so that persons may
16 be guaranteed their civil rights and goodwill be fostered;

17 (3) To formulate policies to implement the purposes of
18 this chapter and to make recommendations to agencies and
19 officers of the state and political subdivisions in aid of
20 such policies and purposes;

21 (4) To appoint such employees as it may deem
22 necessary, fix their compensation within the appropriations
23 provided and in accordance with the wage structure
24 established for other state agencies, and prescribe their
25 duties;

26 (5) To obtain upon request and utilize the services of
27 all governmental departments and agencies to be paid from
28 appropriations to this commission;

29 (6) To adopt, promulgate, amend, and rescind suitable
30 rules and regulations to carry out the provisions of this
31 chapter and the policies and practices of the commission in
32 connection therewith;

33 (7) To receive, investigate, initiate, and pass upon
34 complaints alleging discrimination in employment, housing or

35 in places of public accommodations [because] on the basis of
36 race, color, religion, national origin, ancestry, sex,
37 **sexual orientation, gender identity**, age, as it relates to
38 employment, disability, **veteran status**, or familial status
39 as it relates to housing and to require the production for
40 examination of any books, papers, records, or other
41 materials relating to any matter under investigation;

42 (8) To hold hearings, subpoena witnesses, compel their
43 attendance, administer oaths, to take the testimony of any
44 person under oath, and, in connection therewith, to require
45 the production for examination of any books, papers or other
46 materials relating to any matter under investigation or in
47 question before the commission;

48 (9) To issue publications and the results of studies
49 and research which will tend to promote goodwill and
50 minimize or eliminate discrimination in housing, employment
51 or in places of public accommodation [because] on the basis
52 of race, color, religion, national origin, ancestry, sex,
53 **sexual orientation, gender identity**, age, as it relates to
54 employment, disability, **veteran status**, or familial status
55 as it relates to housing;

56 (10) To provide each year to the governor and to the
57 general assembly a full written report of all its activities
58 and of its recommendations;

59 (11) To adopt an official seal;

60 (12) To cooperate, act jointly, enter into cooperative
61 or work-sharing agreements with the United States Equal
62 Employment Opportunity Commission, the United States
63 Department of Housing and Urban Development, and other
64 federal agencies and local commissions or agencies to
65 achieve the purposes of this chapter;

66 (13) To accept grants, private gifts, bequests, and
67 establish funds to dispose of such moneys so long as the
68 conditions of the grant, gift, or bequest are not
69 inconsistent with the purposes of this chapter and are used
70 to achieve the purposes of this chapter;

71 (14) To establish a human rights fund as defined in
72 section 213.010, for the purposes of administering sections
73 213.040, 213.045, 213.050, 213.070, 213.075, and 213.076.

74 2. No rule or portion of a rule promulgated under the
75 authority of this chapter shall become effective unless it
76 has been promulgated pursuant to the provisions of [section
77 536.024] **chapter 536**.

213.040. 1. It shall be an unlawful housing practice:

2 (1) To refuse to sell or rent after the making of a
3 bona fide offer, to refuse to negotiate for the sale or
4 rental of, to deny or otherwise make unavailable, a dwelling
5 to any person [because] **on the basis** of race, color,
6 religion, national origin, ancestry, sex, **sexual**
7 **orientation, gender identity, disability, veteran status, or**
8 familial status;

9 (2) To discriminate against any person in the terms,
10 conditions, or privileges of sale or rental of a dwelling,
11 or in the provision of services or facilities in connection
12 therewith, [because] **on the basis** of race, color, religion,
13 national origin, ancestry, sex, **sexual orientation, gender**
14 **identity, disability, veteran status, or familial status;**

15 (3) To make, print, or publish, or cause to be made,
16 printed, or published any notice, statement or
17 advertisement, with respect to the sale or rental of a
18 dwelling that indicates any preference, limitation, or
19 discrimination [because] **on the basis** of race, color,
20 religion, national origin, ancestry, sex, **sexual**

21 **orientation, gender identity, disability, veteran status, or**
22 familial status, or an intention to make any such
23 preference, limitation, or discrimination;

24 (4) To represent to any person **[because] on the basis**
25 of race, color, religion, national origin, ancestry, sex,
26 **sexual orientation, gender identity, disability, veteran**
27 **status,** or familial status that any dwelling is not
28 available for inspection, sale, or rental when such dwelling
29 is in fact so available;

30 (5) To induce or attempt to induce any person to sell
31 or rent any dwelling by representations regarding the entry
32 or prospective entry into the neighborhood of a person or
33 persons **[because] on the basis** of a particular race, color,
34 religion, national origin, ancestry, sex, **sexual**
35 **orientation, gender identity, disability, veteran status, or**
36 familial status;

37 (6) To discriminate in the sale or rental of, or to
38 otherwise make unavailable or deny, a dwelling to any buyer
39 or renter **[because] on the basis** of a disability of:

40 (a) That buyer or renter;

41 (b) A person residing in or intending to reside in
42 that dwelling after it is so sold, rented, or made
43 available; or

44 (c) Any person associated with that buyer or renter;

45 (7) To discriminate against any person in the terms,
46 conditions, or privileges of sale or rental of a dwelling,
47 or in the provision of services or facilities in connection
48 with such dwelling, **[because] on the basis** of a disability
49 of:

50 (a) That person;

51 (b) A person residing in or intending to reside in
52 that dwelling after it is so sold, rented, or made
53 available; or

54 (c) Any person associated with that person.

55 2. For purposes of this section and sections 213.045
56 and 213.050, discrimination includes:

57 (1) A refusal to permit, at the expense of the person
58 with the disability, reasonable modifications of existing
59 premises occupied or to be occupied by such person if such
60 modifications may be necessary to afford such person full
61 enjoyment of the premises, except that, in the case of a
62 rental, the landlord may, where it is reasonable to do so,
63 condition permission for a modification on the renter's
64 agreeing to restore the interior of the premises to the
65 condition that existed before the modification, reasonable
66 wear and tear excepted;

67 (2) A refusal to make reasonable accommodations in
68 rules, policies, practices, or services, when such
69 accommodations may be necessary to afford such person equal
70 opportunity to use and enjoy a dwelling; or

71 (3) In connection with the design and construction of
72 covered multifamily dwellings for first occupancy after
73 March 13, 1991, a failure to design and construct those
74 dwellings in such a manner that:

75 (a) The public use and common use portions of such
76 dwellings are readily accessible to and usable by persons
77 with a disability;

78 (b) All the doors designed to allow passage into and
79 within all premises within such dwellings are sufficiently
80 wide to allow passage by persons with a disability in
81 wheelchairs; and

82 (c) All premises within such dwellings contain the
83 following features of adaptive design:

84 a. An accessible route into and through the dwelling;

85 b. Light switches, electrical outlets, thermostats,
86 and other environmental controls in accessible locations;

87 c. Reinforcements in bathroom walls to allow later
88 installation of grab bars; and

89 d. Usable kitchens and bathrooms such that an
90 individual in a wheelchair can maneuver about the space.

91 3. As used in subdivision (3) of subsection 2 of this
92 section, the term "covered multifamily dwelling" means:

93 (1) Buildings consisting of four or more units if such
94 buildings have one or more elevators; and

95 (2) Ground floor units in other buildings consisting
96 of four or more units.

97 4. Compliance with the appropriate requirements of the
98 American National Standard for Buildings and Facilities
99 providing accessibility and usability for people with
100 physical disabilities, commonly cited as "ANSI A117.1",
101 suffices to satisfy the requirements of paragraph (a) of
102 subdivision (3) of subsection 2 of this section.

103 5. Where a unit of general local government has
104 incorporated into its laws the requirements set forth in
105 subdivision (3) of subsection 2 of this section, compliance
106 with such laws shall be deemed to satisfy the requirements
107 of that subdivision. Such compliance shall be subject to
108 the following provisions:

109 (1) A unit of general local government may review and
110 approve newly constructed covered multifamily dwellings for
111 the purpose of making determinations as to whether the
112 design and construction requirements of subdivision (3) of
113 subsection 2 of this section are met;

114 (2) The commission shall encourage, but may not
115 require, the units of local government to include in their
116 existing procedures for the review and approval of newly
117 constructed covered multifamily dwellings, determinations as
118 to whether the design and construction of such dwellings are
119 consistent with subdivision (3) of subsection 2 of this
120 section, and shall provide technical assistance to units of
121 local government and other persons to implement the
122 requirements of subdivision (3) of subsection 2 of this
123 section;

124 (3) Nothing in this chapter shall be construed to
125 require the commission to review or approve the plans,
126 designs or construction of all covered dwellings, to
127 determine whether the design and construction of such
128 dwellings are consistent with the requirements of
129 subdivision (3) of subsection 2 of this section.

130 6. Nothing in this chapter shall be construed to
131 invalidate or limit any law of the state or political
132 subdivision of the state, or other jurisdiction in which
133 this chapter shall be effective, that requires dwellings to
134 be designed and constructed in a manner that affords persons
135 with disabilities greater access than is required by this
136 chapter.

137 7. Nothing in this section and sections 213.045 and
138 213.050 requires that a dwelling be made available to an
139 individual whose tenancy would constitute a direct threat to
140 the health or safety of other individuals or whose tenancy
141 would result in substantial physical damage to the property
142 of others.

143 8. Nothing in this section and sections 213.045 and
144 213.050 limits the applicability of any reasonable local or
145 state restriction regarding the maximum number of occupants

permitted to occupy a dwelling, nor does any provision in this section and sections 213.045 and 213.050 regarding familial status apply with respect to housing for older persons.

9. As used in this section and sections 213.045 and 213.050, "housing for older persons" means housing:

(1) Provided under any state or federal program that the commission determines is specifically designed and operated to assist elderly persons, as defined in the state or federal program;

(2) Intended for, and solely occupied by, persons sixty-two years of age or older; or

(3) Intended and operated for occupancy by at least one person fifty-five years of age or older per unit. In determining whether housing qualifies as housing for older persons under this subsection, the commission shall develop regulations which require at least the following factors:

(a) The existence of significant facilities and services specifically designed to meet the physical or social needs of older persons, or if the provision of such facilities and services is not practicable, that such housing is necessary to provide important housing opportunities for older persons; and

(b) That at least eighty percent of the units are occupied by at least one person fifty-five years of age or older per unit; and

(c) The publication of, and adherence to, policies and procedures which demonstrate an intent by the owner or manager to provide housing for persons fifty-five years of age or older.

10. Housing shall not fail to meet the requirements for housing for older persons by reason of:

178 (1) Persons residing in such housing as of August 28,
179 1992, who do not meet the age requirements of subdivision
180 (2) or (3) of subsection 9 of this section, provided that
181 new occupants of such housing meet the age requirements of
182 subdivision (2) or (3) of subsection 9 of this section; or

183 (2) Unoccupied units, provided that such units are
184 reserved for occupancy by persons who meet the age
185 requirements of subdivision (2) or (3) of subsection 9 of
186 this section.

187 11. Nothing in this section or section 213.045 or
188 213.050 shall prohibit conduct against a person because such
189 person has been convicted by any court of competent
190 jurisdiction of the illegal manufacture or distribution of a
191 controlled substance, as defined by section 195.010.

192 12. Nothing in this chapter shall prohibit a religious
193 organization, association, or society, or any nonprofit
194 institution or organization operated, supervised or
195 controlled by or in conjunction with a religious
196 organization, association, or society, from limiting the
197 sale, rental or occupancy of dwellings which it owns or
198 operates for other than a commercial purpose to persons of
199 the same religion, or from giving preference to such
200 persons, unless membership in such religion is restricted on
201 account of race, color, or national origin. Nor shall
202 anything in this chapter prohibit a private club not in fact
203 open to the public, which as an incident to its primary
204 purpose or purposes provides lodging which it owns or
205 operates for other than a commercial purpose, from limiting
206 the rental or occupancy of such lodging to its members or
207 from giving preference to its members.

208 13. Nothing in this chapter, other than the
209 prohibitions against discriminatory advertising in

210 subdivision (3) of subsection 1 of this section, shall apply
211 to:

212 (1) The sale or rental of any single family house by a
213 private individual owner, provided the following conditions
214 are met:

215 (a) The private individual owner does not own or have
216 any interest in more than three single family houses at any
217 one time; and

218 (b) The house is sold or rented without the use of a
219 real estate broker, agent or salesperson or the facilities
220 of any person in the business of selling or renting
221 dwellings and without publication, posting or mailing of any
222 advertisement. If the owner selling the house does not
223 reside in it at the time of the sale or was not the most
224 recent resident of the house prior to such sale, the
225 exemption in this section applies to only one such sale in
226 any twenty-four-month period; or

227 (2) Rooms or units in dwellings containing living
228 quarters occupied or intended to be occupied by no more than
229 four families living independently of each other, if the
230 owner actually maintains and occupies one of such living
231 quarters as his or her residence.

213.045. It shall be unlawful for any bank, building
2 and loan association, insurance company or other
3 corporation, association, firm or enterprise whose business
4 consists in whole or in part in the making of commercial
5 real estate loans, to deny a loan or other financial
6 assistance [because] **on the basis** of race, color, religion,
7 national origin, ancestry, sex, **sexual orientation, gender**
8 **identity**, disability, **veteran status**, or familial status to
9 a person applying therefor for the purpose of purchasing,
10 construction, improving, repairing, or maintaining a

dwelling, or to discriminate against [him] **such person** in fixing of the amount, interest rate, duration or other terms or conditions of such loan or other financial assistance, [because] **on the basis** of the race, color, religion, national origin, ancestry, sex, **sexual orientation, gender identity, disability, veteran status,** or familial status of such person or of any person associated with [him] **such person** in connection with such loan or other financial assistance, or of the present or prospective owners, lessees, tenants, or occupants, of the dwellings in relation to which such loan or other financial assistance is to be made or given.

213.050. It shall be unlawful to deny any person access to or membership or participation in any multiple listing service, real estate brokers' organization or other service organization, or facility relating to the business of selling or renting dwellings, [because] **on the basis** of race, color, religion, national origin, ancestry, sex, **sexual orientation, gender identity, disability, veteran status,** or familial status.

213.055. 1. It shall be an unlawful employment practice:

(1) For an employer, [because] **on the basis** of the race, color, religion, national origin, sex, **sexual orientation, gender identity,** ancestry, age [or], disability, **or veteran status** of any individual:

(a) To fail or refuse to hire or to discharge any individual, or otherwise to discriminate against any individual with respect to [his] **such individual's** compensation, terms, conditions, or privileges of employment, [because] **on the basis** of such individual's race, color, religion, national origin, sex, **sexual**

13 **orientation, gender identity, ancestry, age [or],**
14 **disability, or veteran status;**

15 (b) To limit, segregate, or classify [his] employees
16 or [his] employment applicants in any way which would
17 deprive or tend to deprive any individual of employment
18 opportunities or otherwise adversely affect [his] **such**
19 **individual's** status as an employee, [because] **on the basis**
20 of such individual's race, color, religion, national origin,
21 sex, **sexual orientation, gender identity, ancestry, age**
22 **[or], disability, or veteran status;**

23 (2) For a labor organization to exclude or to expel
24 from its membership any individual or to discriminate in any
25 way against any of its members or against any employer or
26 any individual employed by an employer [because] **on the**
27 **basis** of race, color, religion, national origin, sex, **sexual**
28 **orientation, gender identity, ancestry, age [or],**
29 **disability, or veteran status** of any individual; or to
30 limit, segregate, or classify its membership, or to classify
31 or fail or refuse to refer for employment any individual, in
32 any way which would deprive or tend to deprive any
33 individual of employment opportunities, or would limit such
34 employment opportunities or otherwise adversely affect [his]
35 **such individual's** status as an employee or as an applicant
36 for employment, [because] **on the basis** of such individual's
37 race, color, religion, national origin, sex, **sexual**
38 **orientation, gender identity, ancestry, age [or],**
39 **disability, or veteran status;** or for any employer, labor
40 organization, or joint labor-management committee
41 controlling apprenticeship or other training or retraining,
42 including on-the-job training programs to discriminate
43 against any individual [because] **on the basis** of [his] **such**
44 **individual's** race, color, religion, national origin, sex,

45 **sexual orientation, gender identity**, ancestry, age [or],
46 disability, **or veteran status** in admission to, or employment
47 in, any program established to provide apprenticeship or
48 other training;

49 (3) For any employer or employment agency to print or
50 circulate or cause to be printed or circulated any
51 statement, advertisement or publication, or to use any form
52 of application for employment or to make any inquiry in
53 connection with prospective employment, which expresses,
54 directly or indirectly, any limitation, specification, or
55 discrimination, [because] **on the basis** of race, color,
56 religion, national origin, sex, **sexual orientation, gender**
57 **identity**, ancestry, age [or], disability, **or veteran status**
58 unless based upon a bona fide occupational qualification or
59 for an employment agency to fail or refuse to refer for
60 employment, or otherwise to discriminate against, any
61 individual [because] **on the basis** of his or her race, color,
62 religion, national origin, sex, **sexual orientation, gender**
63 **identity**, ancestry, age, as it relates to employment, [or]
64 disability, **or veteran status**, or to classify or refer for
65 employment any individual [because] **on the basis** of [his or
66 her] **such individual's** race, color, religion, national
67 origin, sex, **sexual orientation, gender identity**, ancestry,
68 age [or], disability, **or veteran status**.

69 2. Notwithstanding any other provision of this
70 chapter, it shall not be an unlawful employment practice for
71 an employer to apply different standards of compensation, or
72 different terms, conditions or privileges of employment
73 pursuant to a bona fide seniority or merit system, or a
74 system which measures earnings by quantity or quality of
75 production or to employees who work in different locations,
76 provided that such differences or such systems are not the

77 result of an intention or a design to discriminate, and are
78 not used to discriminate, [because] on the basis of race,
79 color, religion, sex, **sexual orientation, gender identity,**
80 national origin, ancestry, age [or], disability, **or veteran**
81 **status,** nor shall it be an unlawful employment practice for
82 an employer to give and to act upon the results of any
83 professionally developed ability test, provided that such
84 test, its administration, or action upon the results
85 thereof, is not designed, intended or used to discriminate
86 [because] on the basis of race, color, religion, national
87 origin, sex, **sexual orientation, gender identity,** ancestry,
88 age [or], disability, **or veteran status.**

89 3. Nothing contained in this chapter shall be
90 interpreted to require any employer, employment agency,
91 labor organization, or joint labor-management committee
92 subject to this chapter to grant preferential treatment to
93 any individual or to any group [because] on the basis of the
94 race, color, religion, national origin, sex, **sexual**
95 **orientation, gender identity,** ancestry, age [or],
96 disability, **or veteran status** of such individual or group on
97 account of an imbalance which may exist with respect to the
98 total number or percentage of persons of any race, color,
99 religion, national origin, sex, **sexual orientation, gender**
100 **identity,** ancestry, age [or], disability, **or veteran status**
101 employed by any employer, referred or classified for
102 employment by any employment agency or labor organization,
103 admitted to membership or classified by any labor
104 organization, or admitted to or employed in any
105 apprenticeship or other training program, in comparison with
106 the total number or percentage of persons of such race,
107 color, religion, national origin, sex, **sexual orientation,**
108 **gender identity,** ancestry, age [or], disability, **or veteran**

109 **status** in any community, state, section, or other area, or
110 in the available workforce in any community, state, section,
111 or other area.

112 4. Notwithstanding any other provision of this
113 chapter, it shall not be an unlawful employment practice for
114 the state or any political subdivision of the state to
115 comply with the provisions of 29 U.S.C. Section 623 relating
116 to employment as firefighters or law enforcement officers.

213.065. 1. All persons within the jurisdiction of
2 the state of Missouri are free and equal and shall be
3 entitled to the full and equal use and enjoyment within this
4 state of any place of public accommodation, as hereinafter
5 defined, without discrimination or segregation [because] on
6 **the basis** of race, color, religion, national origin, sex,
7 **sexual orientation, gender identity**, ancestry, [or]
8 disability, **or veteran status**.

9 2. It is an unlawful discriminatory practice for any
10 person, directly or indirectly, to refuse, withhold from or
11 deny any other person, or to attempt to refuse, withhold
12 from or deny any other person, any of the accommodations,
13 advantages, facilities, services, or privileges made
14 available in any place of public accommodation, as defined
15 in section 213.010 and this section, or to segregate or
16 discriminate against any such person in the use thereof
17 [because] **on the basis** of race, color, religion, national
18 origin, sex, **sexual orientation, gender identity**, ancestry,
19 [or] disability, **or veteran status**.

20 3. The provisions of this section shall not apply to a
21 private club, a place of accommodation owned by or operated
22 on behalf of a religious corporation, association or
23 society, or other establishment which is not in fact open to
24 the public, unless the facilities of such establishments are

25 made available to the customers or patrons of a place of
26 public accommodation as defined in section 213.010 and this
27 section.

213.070. [1.] It shall be an unlawful discriminatory
2 practice [for an employer, employment agency, labor
3 organization, or place of public accommodation]:

4 (1) To aid, abet, incite, compel, or coerce the
5 commission of acts prohibited under this chapter or to
6 attempt to do so;

7 (2) To retaliate or discriminate in any manner against
8 any other person because such person has opposed any
9 practice prohibited by this chapter or because such person
10 has filed a complaint, testified, assisted, or participated
11 in any manner in any investigation, proceeding or hearing
12 conducted pursuant to this chapter;

13 (3) For the state or any political subdivision of this
14 state to discriminate on the basis of race, color, religion,
15 national origin, sex, **sexual orientation, gender identity,**
16 ancestry, age, as it relates to employment, disability,
17 **veteran status,** or familial status as it relates to housing;
18 or

19 (4) To discriminate in any manner against any other
20 person because of such person's association with any person
21 protected by this chapter.

22 [2. This chapter, in addition to chapter 285 and
23 chapter 287, shall provide the exclusive remedy for any and
24 all claims for injury or damages arising out of an
25 employment relationship.]

213.075. 1. [As a jurisdictional condition precedent
2 to filing a civil action under this chapter,] Any person
3 claiming to be aggrieved by an unlawful discriminatory
4 practice [shall] **may** make, sign and file with the commission

5 a verified complaint in writing, within one hundred eighty
6 days of the alleged act of discrimination, which shall state
7 the name and address of the [employer, employment agency,
8 labor organization, or place of public accommodation]
9 alleged to have committed the unlawful discriminatory
10 practice and which shall set forth the particulars thereof
11 and such other information as may be required by the
12 commission. The complainant's agent, attorney or the
13 attorney general may, in like manner, make, sign and file
14 such complaint. [The failure to timely file a complaint
15 with the commission shall deprive the commission of
16 jurisdiction to investigate the complaint. The commission
17 shall make a determination as to its jurisdiction with
18 respect to all complaints. Notwithstanding any other
19 provision of this chapter to the contrary, if a complaint is
20 not filed with the commission within one hundred eighty days
21 of the alleged act of discrimination, the commission shall
22 lack jurisdiction to take any action on such a complaint
23 other than to dismiss the complaint for lack of
24 jurisdiction. The failure to timely file a complaint with
25 the commission may be raised as a complete defense by a
26 respondent or defendant at any time, either during the
27 administrative proceedings before the commission, or in
28 subsequent litigation, regardless of whether the commission
29 has issued the person claiming to be aggrieved a letter
30 indicating his or her right to bring a civil action and
31 regardless of whether the employer asserted the defense
32 before the commission.]

33 2. Any complaint which is filed with the federal Equal
34 Employment Opportunity Commission or other federal agencies
35 with which the commission has a work-sharing or deferral
36 agreement, or with a local commission which has been

37 certified as substantially equivalent by the commission,
38 shall be deemed filed with the commission on the date that
39 such complaint is received by such federal agency or local
40 commission. A copy of all complaints filed with a local
41 commission with the authority to enforce the provisions of
42 this chapter is to be forwarded to the commission within
43 seven days of the filing thereof with such local
44 commission. If a local commission has jurisdiction to hear
45 a complaint filed with the commission, such complaint shall
46 be deemed to have been filed with the local commission on
47 the date on which such complaint was filed with the
48 commission. The commission shall, within seven days of the
49 receipt of a complaint which a local commission has
50 jurisdiction to hear, forward a copy thereof to such local
51 commission.

52 3. After the filing of any complaint, the executive
53 director shall, with the assistance of the commission's
54 staff, promptly investigate the complaint, and if the
55 director determines after the investigation that probable
56 cause exists for crediting the allegations of the complaint,
57 the executive director shall immediately endeavor to
58 eliminate the unlawful discriminatory practice complained of
59 by conference, conciliation and persuasion, and shall report
60 the results to the commission. The investigation,
61 determination of probable cause and conciliation shall be
62 conducted according to such rules, regulations and
63 guidelines as the commission shall prescribe.

64 4. A person who is not named as a respondent in a
65 complaint, but who is identified as a respondent in the
66 course of investigation, may be joined as an additional or
67 substitute respondent upon written notice, pursuant to such
68 rules, regulations, and guidelines as the commission shall

69 prescribe. Such notice, in addition to complying with the
70 requirements of such rules, regulations, and guidelines,
71 shall also state the reason why the person to whom the
72 notice is addressed has been joined as a party.

73 5. In case of failure to eliminate such discriminatory
74 practice as found in the investigation, if in the judgment
75 of the chairperson of the commission circumstances so
76 warrant, there shall be issued and served in the name of the
77 commission, a written notice, together with a copy of the
78 complaint, as it may have been amended, requiring the person
79 named in the complaint, hereinafter referred to as
80 "respondent", to answer the charges of the complaint at a
81 hearing, at a time and place to be specified in the notice,
82 before a panel of at least three members of the commission
83 sitting as the commission or before a hearing examiner
84 licensed to practice law in this state who shall be
85 appointed by the executive director and approved by the
86 commission. The place of the hearing shall be in the office
87 of the commission or such other place designated by it,
88 except that if the respondent so requests, in writing, the
89 hearing shall be held in the county of such person's
90 residence or business location at the time of the alleged
91 unlawful discriminatory practice. A copy of the notice
92 shall also be served on the complainants.

93 6. In all cases where a written notice of hearing has
94 been issued and a party has not elected the option to
95 proceed in circuit court as set forth in section 213.076,
96 the procedures set forth for a hearing shall apply.

97 7. The commission shall be a party to the action and
98 shall be represented before the panel or the hearing
99 examiner by the office of the attorney general or, when so
100 delegated by the attorney general, a staff attorney of the

101 commission. Neither the hearing examiner nor any member of
102 the panel shall have participated in the investigation of
103 the complaint. Evidence concerning endeavors at
104 conciliation shall be excluded.

105 8. The respondent may file a written verified answer
106 to the complaint and appear at the hearing in person or
107 otherwise with or without counsel, and submit testimony. At
108 the discretion of the hearing examiner or the panel, the
109 complainant may be allowed to intervene, thereby becoming a
110 party to the action with the right to present testimony in
111 person or by counsel, provided the complainant at all times
112 shall be treated as a party for the purpose of discovery and
113 the taking of depositions. The commission or complainant
114 intervenor shall have the power to reasonably and fairly
115 amend any complaint, and the respondent shall have like
116 power to amend any answer. The testimony taken at the
117 hearing shall be under oath and be transcribed.

118 9. In any contested case before the commission, any
119 party may take and use written interrogatories, requests for
120 production of documents and other materials, and requests
121 for admissions, and all other forms of discovery authorized
122 by rules of civil procedure in the same manner, upon, and
123 under the same conditions, and upon the same notice, as is
124 or may hereafter be provided for with respect to the taking
125 and using of written interrogatories, requests for
126 production of documents and other materials, and requests
127 for admissions, and all other forms of discovery authorized
128 by rules of civil procedure in civil actions in the circuit
129 court. The panel or hearing examiner shall have the
130 authority to impose sanctions in the same manner as set
131 forth in the rules of civil procedure.

132 10. The hearing shall be conducted in the manner
133 provided by chapter 536.

134 11. When the case is heard by a panel of the
135 commission, the chairperson of the commission shall select
136 the hearing panel and the presiding officer. The presiding
137 officer shall have full authority to call and examine
138 witnesses, admit or exclude evidence and rule upon all
139 motions and objections. The panel shall state its findings
140 of fact and conclusions of law, and if, upon all the
141 evidence at the hearing, the panel finds:

142 (1) That a respondent has engaged in an unlawful
143 discriminatory practice as defined in this chapter, the
144 commission shall issue and cause to be served on the
145 respondent an order requiring the respondent to cease and
146 desist from the unlawful discriminatory practice. The order
147 shall require the respondent to take such affirmative
148 action, as in the panel's judgment will implement the
149 purposes of this chapter, including, but not limited to,
150 payment of back pay; hiring; reinstatement or upgrading;
151 restoration to membership in any respondent labor
152 organization; the extension of full, equal and unsegregated
153 housing; the extension of full, equal and unsegregated
154 public accommodations; extension of a commercial real estate
155 loan or other financial assistance; extension or restoration
156 of membership or participation in any multiple listing
157 service or other real estate service organization or
158 facility; payment of actual damages; and the submission of a
159 report of the manner of compliance;

160 (2) That a respondent has engaged or is about to
161 engage in a violation of section 213.040, 213.045, 213.050,
162 or 213.070, to the extent that the alleged violation of
163 section 213.070 relates to or involves a violation of one or

more of such other sections or relates to or involves the encouraging, aiding, or abetting of a violation of such other sections, the commission may, in addition to the relief provided in subdivision (1) of this subsection, assess a civil penalty against the respondent, for purposes of vindicating the public interest:

(a) In an amount not exceeding two thousand dollars if the respondent has not been adjudged to have violated one or more of the sections enumerated in subdivision (2) of this subsection within five years of the date of the filing of the complaint;

(b) In an amount not exceeding five thousand dollars if the respondent has been adjudged to have committed one violation of the sections enumerated in subdivision (2) of this subsection within five years of the date on which the complaint is filed;

(c) In an amount not exceeding ten thousand dollars if the respondent has been adjudged to have committed two or more prior violations of the sections enumerated in subdivision (2) of this subsection within seven years of the date on which the complaint is filed.

All civil penalties set forth in this subsection shall be paid to the human rights fund.

12. If, upon all the evidence, the panel finds that a respondent has not engaged in any unlawful discriminatory practice, the panel shall state its findings of fact and conclusions of law and shall issue and cause to be served on the complainant and respondent an order dismissing the complaint.

13. When the case is heard by a hearing examiner, the examiner shall have all powers described in subdivision (8)

of section 213.030 and subsection 11 of this section, for the purpose of the hearing. The hearing examiner shall make findings of fact and conclusions of law and shall recommend to the commission an order granting such relief as provided in subsection 11 of this section or dismissing the complaint as to the respondent as provided in subsection 12 of this section, in accordance with such findings.

14. A panel of at least three members of the commission, sitting as the commission, shall review the record, findings and recommended order of the hearing examiner. The panel shall thereafter accept or amend the recommended order which shall become the order of the commission. All orders shall be served on the complainant and respondent, and copies shall be delivered to the attorney general and such other public officers as the commission deems proper.

15. No order of the commission issued pursuant to this section shall affect any contract, sale, encumbrance or lease consummated before the issuance of such order and involving a bona fide purchaser without actual notice of the charge filed pursuant to this section.

16. Any person aggrieved by an order of the commission may appeal as provided in chapter 536.

213.101. [1.] The provisions of this chapter shall be construed to accomplish the purposes thereof and any law inconsistent with any provision of this chapter shall not apply. Nothing contained in this chapter shall be deemed to repeal any of the provisions of any law of this state relating to discrimination [because] **on the basis** of race, color, religion, national origin, sex, **sexual orientation, gender identity**, ancestry, age, disability, **veteran status**, or familial status.

10 [2. The general assembly hereby expressly abrogates
11 the case of *McBryde v. Ritenour School District*, 207 S.W.3d
12 162 (Mo.App. E.D. 2006), and its progeny as it relates to
13 the necessity and appropriateness of the issuance of a
14 business judgment instruction. In all civil actions brought
15 under this chapter, a jury shall be given an instruction
16 expressing the business judgment rule.

17 3. If an employer in a case brought under this chapter
18 files a motion pursuant to rule 74.04 of the Missouri rules
19 of civil procedure, the court shall consider the burden-
20 shifting analysis of *McDonnell Douglas Corp. v. Green*, 411
21 U.S. 792 (1973), and its progeny to be highly persuasive for
22 analysis in cases not involving direct evidence of
23 discrimination.

24 4. The general assembly hereby expressly abrogates by
25 this statute the cases of *Daugherty v. City of Maryland*
26 *Heights*, 231 S.W.3d 814 (Mo. 2007) and its progeny as they
27 relate to the contributing factor standard and abandonment
28 of the burden-shifting framework established in *McDonnell*
29 *Douglas Corp. v. Green*, 411 U.S. 792 (1973).

30 5. The general assembly hereby expressly abrogates by
31 this statute the holding in *Hurst v. Kansas City Mo. School*
32 *District*, 437 S.W.3d 327 (Mo.App. W.D. 2014), that Missouri
33 Approved Instruction 19.01 may be applied to actions brought
34 pursuant to this chapter, and the holding in *Thomas v.*
35 *McKeever's Enterprises, Inc.*, 388 S.W.3d 206 (Mo.App. W.D.
36 2012), that juries shall not be instructed that plaintiffs
37 bear the burden of establishing "but for" causation in
38 actions brought pursuant to this chapter.

39 6. The general assembly hereby abrogates all Missouri-
40 approved jury instructions specifically addressing civil

41 actions brought under this chapter which were in effect
42 prior to August 28, 2017.]

213.111. 1. If, after one hundred eighty days from
2 the filing of a complaint alleging an unlawful
3 discriminatory practice pursuant to section 213.055, 213.065
4 or 213.070 to the extent that the alleged violation of
5 section 213.070 relates to or involves a violation of
6 section 213.055 or 213.065, or subdivision (3) of subsection
7 1 of section 213.070 as it relates to employment and public
8 accommodations, the commission has not completed its
9 administrative processing and the person aggrieved so
10 requests in writing, the commission shall issue to the
11 person claiming to be aggrieved a letter indicating his or
12 her right to bring a civil action within ninety days of such
13 notice against the respondent named in the complaint. [If,

14 after the filing of a complaint] **Any person alleging an**
15 **unlawful discriminatory practice** pursuant to sections
16 213.040, 213.045, 213.050 and 213.070, to the extent that
17 the alleged violation of section 213.070 relates to or
18 involves a violation of sections 213.040, 213.045 and
19 213.050, or subdivision (3) of subsection 1 of section
20 213.070 as it relates to housing, [and the person aggrieved
21 so requests in writing, the commission shall issue to the
22 person claiming to be aggrieved a letter indicating his or
23 her right to bring a civil action within ninety days of such
24 notice against the respondent named in the complaint. The
25 commission may not at any other time or for any other reason
26 issue a letter indicating a complainant's right to bring a
27 civil action] **may file a petition in the circuit court of**
28 **the county in which the alleged unlawful discriminatory**
29 **practice occurred without first filing a complaint with the**
30 **commission.** Such an action may be brought in any circuit

31 court in any county in which the unlawful discriminatory
32 practice is alleged to have **[been committed]** **occurred**,
33 either before a circuit or associate circuit judge. Upon
34 issuance of this notice, the commission shall terminate all
35 proceedings relating to the complaint. No person may file
36 or reinstate a complaint with the commission after the
37 issuance of a notice under this section relating to the same
38 practice or act. Any action brought in court under this
39 section shall be filed within ninety days from the date of
40 the commission's notification letter to the individual but
41 no later than two years after the alleged cause occurred or
42 its reasonable discovery by the alleged injured party.

43 2. The court may grant as relief, as it deems
44 appropriate, any permanent or temporary injunction,
45 temporary restraining order, or other order, and may award
46 to the plaintiff actual and punitive damages, and may award
47 court costs and reasonable attorney fees to the prevailing
48 party, other than a state agency or commission or a local
49 commission; except that, a prevailing respondent may be
50 awarded **court costs and** reasonable attorney fees only upon a
51 showing that the case was without foundation.

52 **[3. Any party to any action initiated under this**
53 **section has a right to a trial by jury.]**

54 4. The sum of the amount of actual damages, including
55 damages for future pecuniary losses, emotional pain,
56 suffering, inconvenience, mental anguish, loss of enjoyment
57 of life, and other nonpecuniary losses, and punitive damages
58 awarded under this section shall not exceed for each
59 complaining party:

60 (1) Actual back pay and interest on back pay; and

61 (2) (a) In the case of a respondent who has more than
62 five and fewer than one hundred one employees in each of

63 twenty or more calendar weeks in the current or preceding
64 calendar year, fifty thousand dollars;

65 (b) In the case of a respondent who has more than one
66 hundred and fewer than two hundred one employees in each of
67 twenty or more calendar weeks in the current or preceding
68 calendar year, one hundred thousand dollars;

69 (c) In the case of a respondent who has more than two
70 hundred and fewer than five hundred one employees in each of
71 twenty or more calendar weeks in the current or preceding
72 calendar year, two hundred thousand dollars; or

73 (d) In the case of a respondent who has more than five
74 hundred employees in each of twenty or more calendar weeks
75 in the current or preceding calendar year, five hundred
76 thousand dollars.

77 5. In any employment-related civil action brought
78 under this chapter, the plaintiff shall bear the burden of
79 proving the alleged unlawful decision or action was made or
80 taken because of his or her protected classification and was
81 the direct proximate cause of the claimed damages.]

2 [285.575. 1. This section shall be known
3 and may be cited as the "Whistleblower's
4 Protection Act".

5 2. As used in this section, the following
6 terms shall mean:

7 (1) "Because" or "because of", as it
8 relates to the adverse decision or action, the
9 person's status as a protected person was the
10 motivating factor;

11 (2) "Employer", an entity that has six or
12 more employees for each working day in each of
13 twenty or more calendar weeks in the current or
14 preceding calendar year. "Employer" shall not
15 include the state of Missouri or its agencies,
16 instrumentalities, or political subdivisions,
17 including but not limited to any public
institution of higher education, a corporation

18 wholly owned by the state of Missouri, an
19 individual employed by an employer, or
20 corporations and associations owned or operated
21 by religious or sectarian organizations;

22 (3) "Proper authorities", a governmental
23 or law enforcement agency, an officer of an
24 employee's employer, the employee's supervisor
25 employed by the employer, or the employee's
26 human resources representative employed by the
27 employer;

28 (4) "Protected person", an employee of an
29 employer who has reported to the proper
30 authorities an unlawful act of his or her
31 employer; an employee of an employer who reports
32 to his or her employer serious misconduct of the
33 employer that violates a clear mandate of public
34 policy as articulated in a constitutional
35 provision, statute, or regulation promulgated
36 under statute; or an employee of an employer who
37 has refused to carry out a directive issued by
38 his or her employer that if completed would be a
39 violation of the law. An employee of an
40 employer is not a protected person if:

41 (a) The employee is a supervisory,
42 managerial, or executive employee or an officer
43 of his or her employer and the unlawful act or
44 serious misconduct reported concerns matters
45 upon which the employee is employed to report or
46 provide professional opinion; or

47 (b) The proper authority or person to whom
48 the employee makes his or her report is the
49 person whom the employee claims to have
50 committed the unlawful act or violation of a
51 clear mandate of public policy;

52 (5) "The motivating factor", the
53 employee's protected classification actually
54 played a role in the adverse decision or action
55 and had a determinative influence on the adverse
56 decision or action.

57 3. This section is intended to codify the
58 existing common law exceptions to the at-will
59 employment doctrine and to limit their future
60 expansion by the courts. This section, in
61 addition to chapter 213 and chapter 287, shall

62 provide the exclusive remedy for any and all
63 claims of unlawful employment practices.

64 4. It shall be an unlawful employment
65 practice for an employer to discharge an
66 individual defined as a protected person in this
67 section because of that person's status as a
68 protected person.

69 5. A protected person aggrieved by a
70 violation of this section shall have a private
71 right of action for actual damages for
72 violations of this section but not for punitive
73 damages. However, if a private right of action
74 for damages exists under another statutory or
75 regulatory scheme, whether under state or
76 federal law, no private right of action shall
77 exist under this statute.

78 6. Any party to any action initiated under
79 this section may demand a trial by jury.

80 7. A protected person aggrieved by a
81 violation of this section shall have a private
82 right of action that may be filed in a court of
83 competent jurisdiction. The only remedies
84 available in such an action shall be:

85 (1) Back pay;

86 (2) Reimbursement of medical bills
87 directly related to a violation of this section;
88 and

89 (3) Additionally, if a protected person
90 proves, by clear and convincing evidence, that
91 the conduct of the employer was outrageous
92 because of the employer's evil motive or
93 reckless indifference to the rights of others,
94 then, such person may receive double the amount
95 awarded under subdivisions (1) and (2) of this
96 subsection, as liquidated damages. In applying
97 this subdivision, the provisions of section
98 510.263 shall be applied as though liquidated
99 damages were punitive damages and as though the
100 amounts referenced in subdivisions (1) and (2)
101 of this subsection were compensatory damages.

102 8. The court, in addition to the damages
103 set forth in subsection 7 of this section, may
104 award the prevailing party court costs and
105 reasonable attorney fees; except that a

106 prevailing respondent may be awarded reasonable
107 attorney fees only upon a showing that the case
108 was without foundation.]

✓